

Land Sale Agreement

This Contract dated _____ in which Buyer: _____ and/or assigns, offers to purchase from Seller(s): _____ the following described real estate, together with all improvements thereon and all appurtenant rights, located at:

Seller agrees:

- 1) The purchase price is to be \$ _____ paid in full to the seller at closing.
- 2) The conditions of this Purchase are as follows:
 - a) Property is sold in "AS IS" Condition with no warranties made by the seller. Seller will make the Buyer aware of any known facts that affect the value of the property.
 - b) If buyer is unable to complete purchase for any reason other than unknown issues during the feasibility study period then the earnest money deposit shall be forfeited to the seller as total liquidated damages and buyer shall be released from any further obligation under this contract.
 - c) If Seller cannot provide clear title or does not allow a feasibility study, Buyer will be released from any further obligation under this contract; otherwise, Seller promises to sell under this contract.
 - d) Buyer will, at Buyer's expense, perform a feasibility study to determine whether the property is suitable for desired use. The feasibility study period shall last until the closing date, to be paid for by the Buyer.
 - e) Closing Agent Located at: _____
 - f) If the Property must be rezoned, Buyer will, at Buyer's expense, obtain rezoning from the appropriate government agencies.
- 3) In consideration of the sum of \$ _____ Earnest Money will be deposited by Buyer and held at the closing attorney's office.
- 4) Taxes to be prorated, any previous year's taxes to be paid by Seller. All attorney closing fees and customary closing costs shall be PAID BY BUYER.
- 5) Closing date shall be on or before _____ days from the date signed below by Seller. Seller grants any extension needed to clear title or to complete closing documentation. Not to exceed an additional 45 days. Title to the above-described real estate to be conveyed by Warranty Deed or other customary instrument of transfer. Title is to be free, clear, and unencumbered, free of any county, city, and federal liens. All liens against the property shall be paid at closing by the seller.
- 6) Additional Terms:

Date: _____

Date: _____

Seller: _____

Buyer: _____